

SPECIAL EDUCATION: EVALUATIONS, ELIGIBILITY, AND EDUCATIONAL PROGRAMMING

Purpose. The Loudoun County School Board is committed to the identification, evaluation, and provision of appropriate educational services to students with disabilities in accordance with applicable federal and state laws and regulations, including the Individuals with Disabilities Education Act and Virginia special education regulations ([8VAC20-81](#)). The School Board ensures that all eligible students receive a free appropriate public education (FAPE) designed to meet their unique needs and prepare them for further education, employment, and independent living.

A. Child Find.

LCPS maintains an active child find program designed to identify, locate and evaluate those children residing in the jurisdiction who are birth to age 21, inclusive, who are in need of special education and related services.

All children, aged two to 21, inclusive, whether enrolled in LCPS or not, who are suspected of having a disability, will be referred to the special education designee who will initiate the process of determining eligibility for special education or related services.

LCPS will provide a free and appropriate public education (FAPE) to all children with disabilities, ages two through 21, inclusive, residing in Loudoun County. Under the **Virginia Administrative Code [8VAC20-81](#)**, the phrase “**all children, aged two to 21, inclusive**” refers to the population of children who are entitled to be considered for special education services under Virginia’s special education regulations.

1. Definition. “All children, aged two to 21, inclusive” means any individual who has reached their second birthday and has not yet reached their twenty-second birthday by September 30 of the applicable school year, and who resides within the jurisdiction of the local educational agency. This includes children who are suspected of having a disability or who have been identified as children with disabilities and are eligible for special education and related services in accordance with state and federal law.

This definition encompasses children served under child find requirements and includes those enrolled in public schools, parentally placed in private schools, experiencing homelessness, wards of the state, or otherwise residing within the division’s geographic boundaries, consistent with applicable regulations ([8VAC20-81-10](#); [8VAC20-81-50](#)).

2. Evaluations and Reevaluations. The School Division conducts evaluations and reevaluations in accordance with applicable law to determine whether a student is a student with a disability and to identify the student’s educational needs ([8VAC20-81-60](#)). Evaluations are conducted using a variety of assessment tools and strategies to gather

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relevant functional, developmental, and academic information and do not rely on any single measure or assessment as the sole criterion for determining eligibility ([8VAC20-81-70 B](#)). All assessments are administered by qualified personnel and are sufficiently comprehensive to identify all of the student's special education and related service needs ([8VAC20-81-70 C-D](#)).

B. Triennial Reevaluation.

Students receiving special education services are reevaluated at least once every three (3) years unless the parent and the School Division agree that a reevaluation is unnecessary ([8VAC20-81-80 B](#); [8VAC20-81-70 E](#)). The School Division conducts a reevaluation when it determines that the educational or related service needs of the student warrant such reevaluation or when a reevaluation is requested by the student's parent or a teacher ([8VAC20-81-80 B](#)). Reevaluations do not occur more than once per year unless the parent and the School Division agree otherwise ([8VAC20-81-80 B](#)). As part of the reevaluation process, the Individualized Education Program (IEP) team reviews existing evaluation data on the student, including prior evaluation results, classroom-based assessments and performance data, and information provided by the parent ([8VAC20-81-70 E](#)). Based on this review, the IEP team determines whether additional data are necessary to establish continued eligibility, identify the student's educational needs, and determine appropriate services ([8VAC20-81-70 E](#)). If additional assessments are required, the School Division obtains informed parental consent prior to conducting such assessments ([8VAC20-81-60 E](#); [8VAC20-81-170](#)).

1. Eligibility. Eligibility for special education and related services is determined by a multidisciplinary team in accordance with Virginia and federal requirements ([8VAC20-81-80 A](#)). The determination is based on a comprehensive review of data from multiple sources and includes documentation of the presence of a disability category recognized under applicable law, evidence that the disability adversely affects the student's educational performance, and a determination that the student requires specially designed instruction ([8VAC20-81-80 D](#); [8VAC20-81-70 E](#)). A student is not determined eligible if the primary cause of the educational need is lack of appropriate instruction in reading or mathematics, limited English proficiency, or environmental, cultural, or economic disadvantage ([8VAC20-81-80 E](#)).

2. Use of term developmental delay. The following provisions apply with respect to implementing the child find requirements of this section:

- a. A State that adopts a definition of *developmental delay* under [§ 300.8\(b\)](#) determines whether the term applies to children aged

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three through nine, or to a subset of that age range (e.g., ages three through five).

- b. A State may not require an LEA to adopt and use the term *developmental delay* for any children within its jurisdiction.
- c. If an LEA uses the term *developmental delay* for children described in [§ 300.8\(b\)](#), the LEA must conform to both the State's definition of that term and to the age range that has been adopted by the State.
- d. If a State does not adopt the term *developmental delay*, an LEA may not independently use that term as a basis for establishing a child's eligibility under this part.

The Virginia Administrative Code provides:

C. Eligibility as a child with developmental delay. ([34 CFR 300.111\(b\)](#))

1. The group may determine that a child has a developmental delay if the local educational agency permits the use of developmental delay as a disability category when determining whether a preschool child, aged two by September 30 to six, inclusive, is eligible under this chapter, and:

- a. The definition of "developmental delay" is met in accordance with [8VAC20-81-10](#); or
- b. The child has a physical or mental condition that has a high probability of resulting in a developmental delay.

2. Eligibility as a child with a disability for children ages two through six shall not be limited to developmental delay if eligibility can be determined under another disability category.

3. A local educational agency is not required to adopt and use developmental delay as a disability category for any children within its jurisdiction. If the local educational agency permits the use of developmental delay as a disability category, it shall comply with the eligibility criteria outlined in this section.

D. Individualized Education Program (IEP). An Individualized Education Program (IEP) is developed, reviewed, and revised for each student who is determined eligible

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for special education and related services ([8VAC20-81-110](#)). The IEP is developed by a properly constituted team that includes the parent and appropriate school personnel and includes a statement of the student's present levels of academic achievement and functional performance, measurable annual goals, and the special education and related services to be provided ([8VAC20-81-110 B-C](#)). The IEP also addresses supplementary aids and services, accommodations and modifications, and the student's participation in state and division-wide assessments ([8VAC20-81-110 C, G](#)). Transition services are included as required by state regulations ([8VAC20-81-110 H](#)). The IEP is reviewed at least annually and revised as necessary to address the student's progress and educational needs ([8VAC20-81-110 D](#)).

E. Least Restrictive Environment (LRE). Students with disabilities are educated with students who are not disabled to the maximum extent appropriate ([8VAC20-81-130 A](#)). Removal from the general education environment occurs only when the nature or severity of the disability is such that education in regular classes, even with the use of supplementary aids and services, cannot be achieved satisfactorily ([8VAC20-81-130 B](#)). The School Division ensures that a continuum of alternative placements is available to meet the needs of students with disabilities ([8VAC20-81-130 C](#)).

F. Placement. Educational placement decisions are made by the IEP team and are based on the student's IEP and individual needs ([8VAC20-81-130 D](#)). Placement is determined at least annually and is designed to ensure that the student is educated as close as possible to the student's home school while participating with nondisabled peers to the maximum extent appropriate ([8VAC20-81-130 A, D-E](#)). Placement decisions are not based solely on the student's disability category, administrative convenience, or the availability of services ([8VAC20-81-130 D](#)).

G. Procedural Safeguards. The School Division ensures that parents of students with disabilities are afforded all procedural safeguards required by law ([8VAC20-81-170](#)). These safeguards include the right to participate in meetings related to the identification, evaluation, placement, and provision of a free appropriate public education, the right to receive prior written notice, the right to examine educational records, and the right to request an independent educational evaluation ([8VAC20-81-170 A-C](#)). Parents also have access to dispute resolution options, including mediation, due process hearings, and state complaint procedures ([8VAC20-81-180](#) through [8VAC20-81-210](#)). A copy of the Procedural Safeguards Notice is provided to parents at least annually and at other times as required by law ([8VAC20-81-170 D](#)).

H. Prior Written Notice. The School Division provides prior written notice to parents within a reasonable time before proposing or refusing to initiate or change the identification, evaluation, educational placement of a student, or the provision of a free

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appropriate public education ([8VAC20-81-170 C](#)). The notice includes a description of the action proposed or refused, an explanation of the basis for the decision, a description of the evaluation data used in making the decision, and information regarding procedural safeguards ([8VAC20-81-170 C](#)).

I. Related Services. Related services are provided as necessary to assist a student with a disability to benefit from special education and are determined by the IEP team ([8VAC20-81-10](#); [8VAC20-81-110 C](#)). These services are documented in the student's IEP and are delivered by qualified personnel in accordance with the student's identified needs.

J. Students Transferring into LCPS. Students with disabilities who transfer to LCPS from another school division and/or private school will be afforded a FAPE. This includes ensuring the student has available special education and related services, in consultation with the parent(s), including services comparable to those described in the student's IEP from the previous local educational agency (LEA) until LCPS either:

1. Adopts and implements the student's IEP from the previous LEA with parental consent; or
2. Conducts an evaluation, if determined necessary by LCPS and with parental consent, and develops and implements a new IEP with parental consent in accordance with federal and state regulations.

K. The Role of Parents/Guardians. Parents and guardians are important partners with LCPS in its mission to provide children with disabilities a FAPE. LCPS values the role of a parent(s)/guardian(s) in the development of a child's Individualized Education Program (IEP) and school staff will take steps to ensure that a parent(s)/guardian(s) of a child with a disability is present, or is afforded the opportunity to participate, in each child study, eligibility, and IEP meeting held for their child. During the development, review, and/or revision of a child's IEP, the input of the child's parent(s)/guardian(s) for enhancing the education of their child will be considered by the IEP team.

L. Amending an IEP.

In making changes to a child's IEP after the annual IEP team meeting for the school year, the parent(s)/guardian(s)/adult student and the local educational agency may agree not to convene an IEP team meeting for the purposes of making those changes, and instead may develop a written document to amend or modify the child's current IEP.

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At any time during this process either party may request an IEP meeting. This process is not a substitute for the required annual IEP meeting. The following shall be required:

1. The written document shall be developed by the case manager of the child in consultation with the parent(s)/guardian(s)/adult student and other members of the IEP team including the LCPS building administrator, who is the individual with authority to agree on behalf of LCPS to the IEP amendment developed without a meeting.
2. If changes are made to the child's IEP, then LCPS shall ensure that the child's IEP team and teachers of the child are informed of those changes.
3. Parent(s)/guardian(s)/adult student shall be provided with a revised copy of the IEP with the amendments incorporated.
4. When requesting input into the IEP amendment from parent(s)/guardian(s)/adult student(s) who are deaf or speak a native language other than English, LCPS staff will, upon request, make available an interpreter for the parent(s)/guardian(s)/adult student(s).
5. Prior Written Notice shall be provided at the same time as requesting parental consent.

M. Harassment is Prohibited. LCPS prohibits the harassment of children with disabilities in academic and nonacademic settings during the school day and for school-sponsored extracurricular activities.

[Former Policy 5-52]

Adopted: 8/11/70

Revised: 9/8/81, 6/22/93, 10/13/09, 4/23/19, 12/15/20

Current Revision: 5/12/26

Leg. Refs.: [8VAC20-81-30.A](#), [8VAC20-81-230.B.1A](#), [8VAC20-81-80.M](#), [8VAC20-81-100.N](#), [34 CFR 300.324\(a\)\(4\) and \(6\)](#), [8 VAC 20-81-110 B.9](#), [\(34 CFR 300.322\(e\)\)](#)

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